

# Ideology & Constitution of Pakistan

Complete Key Notes

**Course Structure:** 6 Units • 27 Topics

**Prepared for:** BS Level / Semester 2

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# Unit 1: Introduction to the Ideology of Pakistan

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## 1.1 Concept and Significance of Ideology

### Concept and Significance of Ideology

**Definition:** An **ideology** is a structured system of ideas, beliefs, values, and ideals that guides how a nation thinks, lives, and organises its political, social, and economic life.

### Ideology of Pakistan

- - The Ideology of Pakistan is rooted in the belief that Muslims of the subcontinent constitute a **separate nation** distinct from Hindus.
- - Muslims deserved an **independent homeland** where they could order their lives according to **Islamic principles** drawn from the Quran and Sunnah.
- - It is based on **Islam**, the **Two-Nation Theory**, and the **vision of the founding fathers**.

### Key Elements

- - **Religion (Islam)** — common faith binding Muslims into one nation.
- - **Culture** — shared Islamic culture, traditions, and Urdu language.
- - **History** — common Islamic and Mughal heritage.
- - **Goal** — establishment of an Islamic welfare state.

### Significance

- - Provides national identity and unity.
- - Defines Pakistan's character as an **Islamic Republic**.
- - Acts as the **ideological foundation** of the Constitution (especially the Objectives Resolution 1949).

**Exam Tip:** Iqbal articulated the *philosophy*, Jinnah translated it into a *political reality*.

## 1.2 Historical Background (1857-1947)

### Historical Background (1857-1947)

| Year | Event | Significance |

| ---- | ----- | ----- |

| **1857** | War of Independence | Joint Hindu-Muslim revolt failed; British blamed Muslims; Muslim power, land, jobs lost. |

| **1875** | Aligarh Movement by Sir Syed Ahmad Khan | Promoted modern education for Muslims; first proposed "two nations". |

| **1885** | Indian National Congress founded | Hindu-dominated party; ignored Muslim interests. |

| **1906** | All India Muslim League founded at Dhaka | Political voice for Muslims. |

| **1930** | Iqbal's Allahabad Address | First clear demand for a separate Muslim state. |

| **1940** | Lahore Resolution | Formal demand for Pakistan. |

| **1947** | Independence (14 August) | Pakistan created. |

### Causes of Muslim Decline after 1857

- - Loss of political power (end of Mughal rule).
- - British distrust → economic and educational backwardness.
- - Hindu revivalism (Arya Samaj, Shuddhi, Sangathan).
- - Loss of Urdu and replacement with Hindi in offices.

### Sir Syed's Reforms

- - Founded **MAO College Aligarh (1875)** → later Aligarh Muslim University.
- - Wrote *Asbab-e-Baghawat-e-Hind* defending Muslims.
- - Encouraged Muslims to learn English and modern sciences.
- - First leader to clearly distinguish Hindus and Muslims as **two nations**.

**Exam Tip:** The Aligarh Movement is the intellectual seed of Pakistan.

## 1.3 Allama Muhammad Iqbal - Spiritual Father

### Allama Muhammad Iqbal (1877-1938) — Spiritual Father of Pakistan

#### Early Life

- - Born in **Sialkot** on **9 November 1877**.
- - Studied at Government College Lahore, then Cambridge, Munich (PhD on Persian metaphysics).
- - Knighted in 1922 — became "Sir Allama Iqbal".

#### Poetic Works

- - **Bang-e-Dara** — first major Urdu collection.
- - **Bal-e-Jibril, Zarb-e-Kaleem, Armughan-e-Hijaz**.
- - Persian works: **Asrar-e-Khudi, Rumuz-e-Bekhudi, Payam-e-Mashriq, Javed Nama**.
- - Famous poems: **Shikwa, Jawab-e-Shikwa, Tarana-e-Milli, Saqi Nama**.

#### Allahabad Address (29 December 1930)

- - Delivered as **Presidential Address** to the All India Muslim League at Allahabad.
- - Proposed: *"I would like to see the Punjab, North-West Frontier Province, Sind and Baluchistan amalgamated into a single State."*
- - This is the **first formal demand** for a separate Muslim state — the philosophical foundation of Pakistan.

#### Letters to Jinnah (1936-37)

- - Persuaded Jinnah to return from London and lead the Muslim League.
- - Convinced him that Muslims needed their own homeland.

#### Titles

- - **Shair-e-Mashriq** (Poet of the East)
- - **Hakeem-ul-Ummat** (Sage of the Nation)
- - **Mufakkir-e-Pakistan** (Thinker of Pakistan)

**Exam Tip:** Iqbal died **21 April 1938** — nine years before Pakistan was created. His birthday (9 November) is a national holiday.

## 1.4 Quaid-e-Azam Muhammad Ali Jinnah

### Quaid-e-Azam Muhammad Ali Jinnah (1876-1948)

#### Early Life

- - Born **25 December 1876** in Karachi.
- - Studied law at **Lincoln's Inn**, London — youngest Indian to be called to the Bar.
- - Started practice in Bombay — became a successful barrister.

#### Political Career

- - Joined **Indian National Congress (1906)**.
- - Joined **Muslim League (1913)**.
- - Architect of **Lucknow Pact (1916)** — bridge between Congress and League — earned title "Ambassador of Hindu-Muslim Unity".
- - **Fourteen Points (1929)** — response to Nehru Report; demanded constitutional safeguards for Muslims.

#### Turning Point

- - After **Congress Ministries (1937-39)** showed Hindu dominance, Jinnah accepted that Muslims needed a **separate homeland**.
- - Led the **Lahore Session (March 1940)** where the Pakistan Resolution was passed.

#### Achievements

- - Led negotiations with **Cabinet Mission (1946)** and **Mountbatten Plan (1947)**.
- - Secured Pakistan on **14 August 1947**.
- - Became **first Governor-General** of Pakistan.
- - Delivered the historic **11 August 1947 speech** to the Constituent Assembly: equal rights for all citizens regardless of religion.

#### Famous Slogan

**Unity, Faith, Discipline — Ittehad, Yaqeen, Tanzeem**

#### Death

- - Died on **11 September 1948** in Karachi — buried at Mazar-e-Quaid.

**Exam Tip:** Jinnah is **Baba-e-Qaum** (Father of the Nation) and **Quaid-e-Azam** (Great Leader).

## 1.5 Other Founding Leaders

### Other Important Founding Leaders

#### Sir Syed Ahmad Khan (1817-1898)

- - Founder of the **Aligarh Movement**.
- - First to call Hindus and Muslims **two separate nations**.
- - Founded **MAO College, Aligarh (1875)** — became AMU in 1920.
- - Books: *Asbab-e-Baghawat-e-Hind*, *Loyal Mohammadans of India*.

#### Liaquat Ali Khan (1895-1951)

- - **First Prime Minister of Pakistan**; titled **Quaid-e-Millat**.
- - Presented the **Objectives Resolution (12 March 1949)**.
- - Assassinated at Liaquat Bagh, Rawalpindi on 16 October 1951.
- - Titled **Shaheed-e-Millat**.

#### Chaudhry Rahmat Ali (1897-1951)

- - Coined the name "**PAKISTAN**" in **1933** in his pamphlet ***Now or Never***.
- - **P** = Punjab, **A** = Afghania (NWFP), **K** = Kashmir, **I** = ignored, **S** = Sindh, **TAN** = Baluchistan.
- - Studied at Cambridge.

#### Maulana Muhammad Ali Jauhar (1878-1931)

- - Leader of the **Khilafat Movement (1919-24)**.
- - Founded *Comrade* (English) and *Hamdard* (Urdu) newspapers.
- - Buried in Jerusalem.

#### Maulana Zafar Ali Khan

- - Editor of **Zamindar** (Urdu daily).
- - Used journalism to mobilise Muslims politically.

#### Raja Sahib of Mahmudabad

- - Major financier of the Muslim League.
- - Funded election campaigns of 1945-46.

#### Sardar Abdur Rab Nishtar

- - Close associate of Jinnah; first Governor of NWFP.

## 1.6 Role of Women in Freedom Movement

### Role of Women in the Pakistan Movement

#### Fatima Jinnah (1893-1967)

- - Sister of Quaid-e-Azam; titled **Madar-e-Millat** (Mother of the Nation).
- - Dental surgeon; gave up her career to support her brother.
- - Organised **All India Muslim Women's Sub-Committee (1938)**.
- - Wrote *My Brother*.
- - Contested 1965 presidential election against Ayub Khan.

#### Begum Ra'ana Liaquat Ali Khan

- - Wife of Liaquat Ali Khan.
- - Founded **All Pakistan Women's Association (APWA, 1949)**.
- - First woman Governor of Sindh; Ambassador to Netherlands, Italy, Tunisia.
- - Recipient of **Nishan-e-Imtiaz**.

#### Begum Shaista Ikramullah

- - First woman elected to Pakistan's **Constituent Assembly (1947)**.
- - Author of *From Purdah to Parliament*.

#### Begum Salma Tassaduq Hussain

- - Active League worker; organiser of Punjab Muslim Women's Sub-Committee.

#### Lady Abdullah Haroon

- - Hosted League meetings in Karachi.

#### Other Contributions

- - Women raised funds, organised processions, and gave shelter to migrants in 1947.
- - They participated in the **Civil Disobedience Movement (1947)** in Punjab and NWFP.
- - Even women in purdah took part — proving the movement's broad base.



## 1.7 Role of Students in Freedom Movement

### Role of Students in the Pakistan Movement

#### All India Muslim Students Federation (AIMSF)

- - Formed in **1937** at Aligarh.
- - President: **Raja Muhammad Sarwar**.
- - Slogan: *"Pakistan ka matlab kya — La ilaha illallah."*

#### Aligarh Muslim University

- - Called the **"Arsenal of Pakistan"** by Quaid-e-Azam.
- - Sir Syed's institution; produced political activists.

#### Islamia College Lahore & Peshawar

- - Major centres of Muslim student politics.
- - Hosted League gatherings.

### Activities of Students

- - Toured villages and cities to spread the Pakistan message.
- - Distributed pamphlets, organised meetings.
- - Mobilised voters during the **1945-46 elections** — Muslim League won **428 of 492 Muslim seats**.
- - Took part in the **Civil Disobedience Movement of 1947**.
- - Helped migrants during the partition violence of 1947.

**Exam Tip:** The 1945-46 elections proved Muslims wanted Pakistan — students were the campaign backbone.

## Unit 2: Two-Nation Theory

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### 2.1 Concept of the Two-Nation Theory

#### Concept of the Two-Nation Theory

##### Definition

The **Two-Nation Theory** is the principle that **Hindus and Muslims** of the Indian subcontinent are **two distinct nations** with separate religions, cultures, languages, traditions, and aspirations — and therefore deserved separate homelands.

##### Differences Between Hindus and Muslims

| Aspect        | Muslims                         | Hindus                              |
|---------------|---------------------------------|-------------------------------------|
| Religion      | Islam — monotheism (Tawhid)     | Hinduism — polytheism, idol worship |
| Culture       | Islamic, Urdu, Persian heritage | Hindu, Sanskrit, Hindi heritage     |
| Social System | Equality, brotherhood, no caste | Rigid caste system (Brahmin-Shudra) |
| Law           | Shariah (Quran & Sunnah)        | Hindu personal law (Manu Smriti)    |
| History       | Mughals, Delhi Sultanate        | Hindu kingdoms                      |
| Festivals     | Eid, Muharram                   | Diwali, Holi                        |
| Diet          | Beef permissible                | Cow sacred                          |

##### Originators

- - **Sir Syed Ahmad Khan** — first used the phrase "two nations" (1867 Urdu-Hindi controversy).
- - **Allama Iqbal** — gave the philosophical foundation (1930 Address).
- - **Quaid-e-Azam** — politically articulated and achieved it (1940 Resolution → 1947 Pakistan).

##### Importance

- - Justified the demand for Pakistan.
- - Became the **ideological basis** of the new state.
- - Reflected in the Objectives Resolution and the Constitution.

**Quaid-e-Azam (1940 Lahore):** *"Hindus and Muslims belong to two different religious philosophies, social customs, literatures... To yoke together two such nations under a single state must lead to a growing discontent."*

## 2.2 Urdu-Hindi Controversy (1867)

### Urdu-Hindi Controversy (1867)

#### Background

- - Urdu was the **official language** of British India offices since 1837.
- - It was written in **Persian-Arabic script** and was widely used by both Hindus and Muslims.

#### The Controversy

- - In **1867**, a group of Hindus in **Banaras (Varanasi)** demanded that Hindi (in Devanagari script) replace Urdu in courts and offices.
- - The movement spread across the United Provinces.
- - The British eventually gave Hindi equal status with Urdu in 1900 (Anthony MacDonnell's Order).

#### Sir Syed's Reaction

- - Sir Syed Ahmad Khan saw this as proof that **Hindus and Muslims could not live together**.
- - He told a friend (Mr. Shakespeare): *"I am now convinced that the Hindus and Muslims could never become one nation."*
- - This was the **first articulation of the Two-Nation Theory**.

#### Significance

- - Marked the beginning of Hindu-Muslim political separation.
- - Convinced Muslims that their **language, culture, and identity** were under threat.
- - Pushed Sir Syed to focus on Muslim education through the Aligarh Movement.

**Exam Tip:** Urdu-Hindi controversy is the **first practical evidence** of the Two-Nation Theory.

## 2.3 Partition of Bengal (1905)

### Partition of Bengal (1905)

#### Background

- - Bengal was the **largest province** of British India (population ~80 million).
- - Administratively unmanageable; Muslims of East Bengal were backward.

#### The Partition

- - **Lord Curzon** (Viceroy) divided Bengal on **16 October 1905** into two parts:
- - **East Bengal & Assam** — Muslim majority (capital: Dhaka).
- - **West Bengal** — Hindu majority (capital: Calcutta).

#### Muslim Reaction

- - Welcomed the partition — gave them political and economic opportunities.
- - Dhaka became a centre of Muslim political activity.

#### Hindu Reaction

- - Strongly opposed; launched the **Swadeshi Movement** and **Boycott of British goods**.
- - Saw it as a strategy to weaken Hindu power.
- - Bengali Hindus felt their cultural unity was broken.

#### Annulment (1911)

- - King George V annulled the partition at the **Delhi Durbar (12 December 1911)**.
- - Capital of British India shifted from Calcutta to Delhi.

#### Significance

- - Muslims realised they could not depend on Hindu support or British promises.
- - Strengthened the demand for a **separate political platform** → led to the founding of the **All India Muslim League (1906)**.
- - Reinforced the **Two-Nation Theory**.

**Exam Tip:** Partition of Bengal happened in **1905**; annulment in **1911**; both years are exam-favourites.

## 2.4 Simla Deputation 1906 & Muslim League

### Simla Deputation (1 October 1906) and Founding of the Muslim League

#### Simla Deputation

- - A delegation of **35 Muslim leaders** met **Viceroy Lord Minto** at **Simla** on **1 October 1906**.
- - Led by **His Highness Sir Aga Khan III** (Sultan Muhammad Shah).
- - Drafted by **Mohsin-ul-Mulk**.

#### Demands

1. **Separate electorates** for Muslims — only Muslims should vote for Muslim representatives.
2. **Reserved seats** in legislatures.
3. **Weightage** in representation (proportionally more than population).
4. Muslim share in government services and judiciary.
5. Muslim representation in local bodies.

#### Outcome

- - Lord Minto **accepted** the demands in principle.
- - Later embodied in the **Indian Councils Act 1909** (Minto-Morley Reforms).
- - Muslims got **separate electorates** — a **historic political victory**.

### Founding of All India Muslim League (30 December 1906)

- - Founded at **Dhaka** during the **All India Muhammadan Educational Conference**.
- - Initiated by **Nawab Salimullah of Dhaka**.
- - First President: **Sir Aga Khan III**.
- - Aims:
- - Promote loyalty to British Crown.
- - Protect and advance political rights of Muslims.
- - Promote friendly relations with other Indian communities.

**Exam Tip:** Simla Deputation is called the "**Magna Carta of Indian Muslims**".

## 2.5 Allama Iqbal's Allahabad Address 1930

### Allama Iqbal's Allahabad Address (29 December 1930)

#### Occasion

- - Iqbal delivered this address as **Presidential Address** to the **25th Annual Session of All India Muslim League** at Allahabad.

#### Key Idea

*"I would like to see the Punjab, North-West Frontier Province, Sind and Baluchistan amalgamated into a single State... the formation of a consolidated North-West Indian Muslim State appears to me to be the final destiny of the Muslims, at least of North-West India."*

#### Main Points

1. **Islam is the determining factor** in the life of Indian Muslims.
2. Muslims are a **separate nation** based on Islamic principles.
3. A **separate Muslim state** in north-west India is the only solution.
4. This state would safeguard Muslim culture, religion, and political rights.
5. Islam is not just a religion but a **complete code of life**.

#### Significance

- - **First formal demand** for a separate Muslim state in subcontinental history.
- - Became the **philosophical foundation** of Pakistan.
- - Inspired the **Lahore Resolution (1940)**.
- - Title "**Mufakkir-e-Pakistan**" (Thinker of Pakistan).

#### Difference from Lahore Resolution

- - Iqbal proposed amalgamation **within** India.
- - Lahore Resolution demanded **independent states** outside India.

**Exam Tip:** Date — **29 December 1930**, place — **Allahabad**, occasion — **Muslim League Session**.

## 2.6 Congress Ministries (1937-39)

### Congress Ministries (1937-1939)

#### Background

- - **Government of India Act 1935** introduced provincial autonomy.
- - **1937 Provincial Elections** held under this Act.
- - Congress won majorities in **7 of 11 provinces**.
- - Muslim League won very few Muslim seats — was politically weak.

#### Congress Rule (July 1937 - October 1939)

- - Congress formed governments in: **UP, Bihar, Bombay, Madras, Central Provinces, Orissa**, and (later) **NWFP, Assam**.
- - Refused coalition with Muslim League in UP — major turning point.

#### Anti-Muslim Policies

- - **Bande Mataram** (Hindu nationalist song) sung in offices.
- - **Vande Mataram** anthem and **Tricolour Flag** imposed.
- - **Wardha Scheme of Education** — promoted Hindi, Devanagari, and Hindu cultural symbols.
- - **Vidya Mandir Scheme** — Hindu religious education.
- - **Cow slaughter banned** in many areas.
- - Muslim festivals disrupted; Urdu downgraded.
- - Muslims discriminated against in jobs and education.

#### Pirpur Report (1938)

- - Investigated Muslim grievances under Congress rule.
- - Documented systematic anti-Muslim policies.
- - Convinced Muslims that **Hindu majority rule = Muslim suppression**.

#### End of Ministries

- - Congress ministries **resigned in October 1939** in protest against India's involvement in WWII without consultation.
- - Jinnah declared **22 December 1939** as "**Day of Deliverance**".

#### Significance

- - Convinced Muslims that **Hindu domination was unacceptable**.
- - Strengthened the **Two-Nation Theory**.
- - Paved the way for the **Lahore Resolution 1940**.

**Exam Tip:** Congress rule (1937-39) was the **catalyst** that turned the Muslim League into a mass party.



## 2.7 Lahore Resolution 1940

### Lahore Resolution (23 March 1940) — The Pakistan Resolution

#### Occasion

- - 27th Annual Session of the **All India Muslim League** at **Minto Park (now Iqbal Park)**, **Lahore**.
- - Held from **22-24 March 1940**.
- - Presided by **Quaid-e-Azam Muhammad Ali Jinnah**.

#### Mover and Seconders

- - **Moved by:** **A. K. Fazlul Haq** (Premier of Bengal) on **23 March 1940**.
- - **Seconded by:** Chaudhry Khaliq-uz-Zaman, Maulana Zafar Ali Khan, Sardar Aurangzeb, Sir Abdullah Haroon, Qazi Muhammad Esa.

#### Text (Key Demand)

*"The areas in which the Muslims are numerically in a majority, as in the North-Western and Eastern Zones of India, should be grouped to constitute Independent States in which the Constituent Units shall be autonomous and sovereign."*

#### Main Points

1. Muslim majority areas should form **independent states**.
2. Adequate safeguards for **minorities** in Muslim and non-Muslim areas.
3. Federal scheme of 1935 was rejected as unworkable.
4. Reservation of fundamental rights for minorities.

#### Reactions

- - Hindu press called it **"Pakistan Resolution"** — name stuck.
- - Congress strongly opposed it.
- - Muslim community embraced it overwhelmingly.

#### Significance

- - **First formal political demand** for a separate Muslim state.
- - Became the **constitutional basis** for the creation of Pakistan.
- - 23 March is celebrated as **Pakistan Day** (since 1956).
- - Renamed **"Pakistan Resolution"** at Madras Session (1941).

**Exam Tip:** Date **23 March 1940**, mover **A. K. Fazlul Haq**, place **Minto Park, Lahore**.

## Unit 3: Introduction to the Constitution of Pakistan

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### 3.1 Definition and Importance of a Constitution

#### Definition and Importance of a Constitution

##### Definition

A **Constitution** is the **supreme/fundamental law** of a country. It is a written or unwritten document that:

- - Defines the **structure, functions, and powers** of the government.
- - Lays down the **rights and duties** of citizens.
- - Establishes the relationship between the **state and the individual**.
- - Distributes powers between **federal and provincial** governments.

##### Types of Constitutions

| Type | Example |

| --- | ----- |

| **Written** | Pakistan, USA, India |

| **Unwritten** | UK |

| **Rigid** (hard to amend) | Pakistan, USA |

| **Flexible** (easily changed) | UK |

| **Federal** | Pakistan, USA |

| **Unitary** | UK, France |

##### Importance

1. **Supreme Law** — overrides all other laws.
2. Provides **rule of law** — even rulers must obey.
3. Protects **fundamental rights** of citizens.
4. Defines **separation of powers** — Legislature, Executive, Judiciary.
5. Prevents **dictatorship** by limiting governmental authority.
6. Defines **federal-provincial** relations.
7. Provides **stability and predictability** in governance.
8. Protects **minority rights** and ensures equality.

##### Sources of a Constitution

- - Customs and conventions.
- - Statutes and judicial decisions.

- - Religion (e.g., Islam in Pakistan).
- - Historical experience.

**Exam Tip:** Pakistan's Constitution of 1973 is **federal, parliamentary, written, and rigid**.

## 3.2 Constitutional History of Pakistan (1956, 1962, 1973)

### Constitutional History of Pakistan

#### Interim Period (1947-1956)

- - Pakistan ran on the **Government of India Act 1935** (modified by the **Indian Independence Act 1947**).
- - **First Constituent Assembly** elected — drafted the Objectives Resolution (1949).
- - Dissolved by Governor-General Ghulam Muhammad in **1954** (Maulvi Tamizuddin case).

#### Constitution of 1956

- - **Adopted:** 23 March 1956 (Pakistan Day).
- - **Drafted by:** Chaudhry Muhammad Ali (PM).
- - **Salient Features:**
  - - Pakistan declared **Islamic Republic of Pakistan**.
  - - **Parliamentary system** — single-house legislature.
  - - **Federal structure** — two units (East & West Pakistan).
  - - Urdu and Bengali as national languages.
  - - Fundamental rights guaranteed.
- - **Abrogated:** 7 October 1958 by **General Ayub Khan's** martial law.

#### Constitution of 1962

- - **Imposed by:** General Ayub Khan.
- - **Salient Features:**
  - - **Presidential system** — strong executive.
  - - **Indirect elections** through "Basic Democracies" (80,000 BD members).
  - - Single-house legislature.
  - - Federal but highly centralised.
  - - "Republic of Pakistan" (Islamic dropped, restored 1963).
- - **Abrogated:** 25 March 1969 by General Yahya Khan.

#### Constitution of 1973 (Current)

- - **Drafted by:** Constituent Assembly under **Z. A. Bhutto**.
- - **Passed:** 10 April 1973.
- - **Enforced:** 14 August 1973.
- - **Salient Features:**
  - - **Islamic Republic of Pakistan** — Islam as state religion (Article 2).

- - **Federal Parliamentary system.**
- - **Bicameral legislature** — National Assembly + Senate.
- - Independent judiciary.
- - Fundamental rights and Islamic provisions.
- - **Urdu** as national language.
- - Suspended by **Zia ul Haq (1977)** and **Musharraf (1999)** but never abrogated.

**Exam Tip:** Pakistan has had **three** constitutions — 1956, 1962, 1973.

## 3.3 Objectives Resolution 1949

### Objectives Resolution (12 March 1949)

#### Background

- - Presented by **Prime Minister Liaquat Ali Khan** to the **Constituent Assembly** on **12 March 1949**.
- - Passed on **12 March 1949** with overwhelming support.

#### Key Points

1. **Sovereignty** belongs to **Allah Almighty alone**; the state exercises it as a sacred trust through chosen representatives.
2. Principles of **democracy, freedom, equality, tolerance, and social justice** as enunciated by **Islam** shall be fully observed.
3. Muslims shall be enabled to order their lives in accordance with the **Quran and Sunnah**.
4. Adequate provisions shall be made for **minorities** to freely profess and practice their religions.
5. Fundamental **rights** shall be guaranteed.
6. Independence of **judiciary** shall be fully secured.
7. **Federal** structure with provincial autonomy.
8. Integrity of the **territory** of Pakistan shall be safeguarded.

#### Significance

- - **Magna Carta** of Pakistan's constitutional history.
- - **Preamble** to all three constitutions (1956, 1962, 1973).
- - Made a **substantive part** of the Constitution as **Article 2-A** by **General Zia ul Haq's 8th Amendment (1985)**.
- - Provides the **ideological framework** of Pakistan.
- - Combines **Islamic principles with democracy**.

#### Criticism

- - Minorities (notably Hindu members like S. C. Chattopadhyay) opposed it for being too Islamic.
- - Created tension between religious and secular interpretations.

**Exam Tip:** Objectives Resolution = **12 March 1949** = "soul of the Constitution".

## Unit 4: Constitution and State Structure

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### 4.1 Structure of Government - Legislature, Executive, Judiciary

#### Structure of Government — Three Branches

Pakistan follows a **federal parliamentary** system with three branches and **separation of powers**.

#### 1. Legislature (Parliament / Majlis-e-Shoora)

- - **Bicameral**: National Assembly (Lower House) + Senate (Upper House).

##### National Assembly

- - **Total seats: 336**
- - **266 General** (directly elected)
- - **60 reserved for women**
- - **10 reserved for non-Muslims**
- - **Term: 5 years**.
- - **Speaker** presides.
- - Sole power over **money bills**.

##### Senate

- - **Total seats: 96**.
- - **Term: 6 years** (half retire every 3 years).
- - Equal representation: **23 seats per province**, plus federal capital and minorities.
- - **Chairman** presides.
- - Cannot be dissolved.

#### 2. Executive

- - **President — Head of State** (ceremonial), elected by Electoral College, term **5 years**, max 2 terms.
- - **Prime Minister — Head of Government** (real executive power), leader of majority in National Assembly.
- - **Cabinet — Federal Ministers** chosen by PM.
- - **Provincial Governors and Chief Ministers** at provincial level.

#### 3. Judiciary

- - **Supreme Court — apex court**; Chief Justice + judges.
- - **High Courts — one in each province + Islamabad**.
- - **Federal Shariat Court — examines laws against Quran/Sunnah**.

- - **Subordinate Courts** — district and sessions.
- - **Independent** — judges cannot be removed except through Supreme Judicial Council.

## Checks and Balances

- - Parliament can pass **vote of no confidence** against PM.
- - President can return bills (not money bills) for reconsideration.
- - Judiciary can declare laws **unconstitutional**.
- - Parliament can impeach President.

**Exam Tip:** Pakistan = **Federal Parliamentary Republic**. Real power lies with **PM**, not President.



## 4.2 Federal vs Provincial Powers

### Federal vs Provincial Powers

#### Federal Structure

Pakistan is a **Federation** of **four provinces** (Punjab, Sindh, KPK, Balochistan), the **Islamabad Capital Territory**, and (formerly) **Federally Administered Tribal Areas (FATA)** and **Azad Kashmir/Gilgit-Baltistan**.

#### Distribution of Powers (Pre-18th Amendment)

The Constitution had **three lists**:

1. **Federal Legislative List (Part I)** — Federal subjects.
2. **Concurrent Legislative List** — Both could legislate; federal law prevailed.
3. **Provincial / Residual** — All other subjects belonged to provinces.

#### Federal Subjects (Federal Legislative List)

- - **Defence**, foreign affairs, currency, foreign trade.
- - Citizenship, naturalisation, passports, immigration.
- - Posts, telegraphs, telephones, broadcasting.
- - Nuclear energy, oil and gas.
- - National highways, railways, ports, airports, shipping.
- - Census, national planning.

#### Provincial Subjects (post-18th Amendment additions)

- - **Education**, health, agriculture, environment.
- - Local government, police, prisons.
- - Land revenue, irrigation, provincial roads.
- - Urban planning, social welfare.
- - Tourism, sports, libraries, museums.

#### Concurrent List — Abolished by 18th Amendment (2010)

All concurrent subjects (47 in number) transferred to **provinces** — major **devolution of power**.

#### Residual Powers

- - After the 18th Amendment, **all residual powers** rest with the **provinces**.

#### Council of Common Interests (CCI)

- - Resolves federal-provincial disputes.

- - Composed of PM, four CMs, and three federal ministers.

## National Finance Commission (NFC)

- - Distributes financial resources between federation and provinces.
- - **7th NFC Award (2010)** gave provinces **57.5%** of divisible pool.

**Exam Tip:** 18th Amendment **abolished the Concurrent List** — provinces became more autonomous.

## 4.3 18th Amendment and Federalism

### 18th Amendment (April 2010) and Its Impact on Federalism

#### Background

- - Passed during **Asif Ali Zardari's** presidency.
- - Signed on **19 April 2010**.
- - Considered the **most far-reaching** amendment in Pakistan's history.
- - Removed distortions introduced by previous military regimes.

#### Major Changes (102 Articles affected)

##### 1. Devolution of Powers

- - **Abolished the Concurrent Legislative List** — 47 subjects transferred to provinces.
- - Education, health, environment, agriculture became **purely provincial**.

##### 2. Renaming

- - NWFP renamed **Khyber Pakhtunkhwa (KPK)** — long-standing Pashtun demand.

##### 3. Restoration of Parliamentary System

- - Removed **Article 58(2)(b)** — President can no longer dissolve National Assembly arbitrarily.
- - PM became the real chief executive again.
- - Cabinet's advice binding on President.

##### 4. Treason Article (6)

- - Strengthened — abrogating, suspending, or holding the Constitution in abeyance is **high treason**.
- - No court can validate such acts; no pardon possible.

##### 5. New Fundamental Right

- - **Article 25-A** — Right to Free and Compulsory Education for children **5-16 years**.
- - **Article 19-A** — Right to Information.

##### 6. Independent Election Commission

- - Chief Election Commissioner appointed through consultation between PM and Leader of Opposition.

##### 7. Judicial Appointments

- - Judges appointed via **Judicial Commission of Pakistan + Parliamentary Committee**.

## 8. Council of Common Interests Empowered

- - Now meets at least once every 90 days; binding decisions on federal-provincial issues.

## 9. Removal of 17th Amendment

- - All distortions of Musharraf's 17th Amendment removed.

## Impact on Federalism

- - Massive **devolution** to provinces.
- - Increased **provincial autonomy** in finance (NFC Award) and legislation.
- - Smaller provinces (KPK, Balochistan) benefited.
- - **Critique:** Some federal coordination weakened (e.g., during COVID-19).

**Exam Tip: 18th Amendment = April 2010 = Devolution + KPK + Article 25-A + Article 6.**

## Unit 5: Fundamental Rights, Principles of Policy &

## Responsibilities

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### 5.1 Fundamental Rights (Articles 8-28)

#### Fundamental Rights — Articles 8 to 28 of the Constitution of Pakistan 1973

Fundamental Rights are **legally enforceable** through the Supreme Court (Article 184) and High Courts (Article 199). Any law inconsistent with them is **void**.

| Article | Right |

| ----- | ----- |

| **Art. 8** | Laws inconsistent with fundamental rights are **void**. |

| **Art. 9** | **Right to Life and Liberty**. |

| **Art. 10** | **Safeguards on arrest and detention** — informed of charges, right to lawyer, produced before magistrate within 24 hours. |

| **Art. 10-A** | **Right to fair trial** (added by 18th Amendment). |

| **Art. 11** | **Slavery, forced labour and child labour** under 14 in factories prohibited. |

| **Art. 12** | **No retrospective punishment** — no punishment for an act not a crime when committed. |

| **Art. 13** | **No double jeopardy** — no person tried twice for the same offence. |

| **Art. 14** | **Dignity of person** inviolable; torture prohibited. |

| **Art. 15** | **Freedom of movement** within Pakistan. |

| **Art. 16** | **Freedom of assembly** (peaceful, unarmed). |

| **Art. 17** | **Freedom of association** — political parties allowed. |

| **Art. 18** | **Freedom of trade, business, or profession**. |

| **Art. 19** | **Freedom of speech and press**. |

| **Art. 19-A** | **Right to Information** (added by 18th Amendment). |

| **Art. 20** | **Freedom of religion** — practice and propagate. |

| **Art. 21** | **No tax** for any particular religion. |

| **Art. 22** | **No religious education** without consent. |

| **Art. 23** | **Right to property** — acquire, hold, dispose. |

| **Art. 24** | **Protection of property rights** — no acquisition without compensation. |

| **Art. 25** | **Equality of citizens** before law; no discrimination on basis of sex. |

| **Art. 25-A** | **Right to Free and Compulsory Education** (5-16 years) — added 18th Amendment. |

| Art. 26 | No discrimination in access to public places. |

| Art. 27 | No discrimination in government employment. |

| Art. 28 | Preservation of language, script, and culture. |

## Key Points

- - Fundamental rights are **justiciable** — courts can enforce.
- - Can be **suspended** during a state of emergency (Article 233).
- - **Article 199** (High Courts) and **Article 184** (Supreme Court) provide enforcement mechanisms.

**Exam Tip:** Most asked: Articles **9, 14, 19, 20, 25, and 25-A**.

## 5.2 Principles of Policy (Articles 29-40)

### Principles of Policy — Articles 29 to 40

#### Nature

- - **Not legally enforceable** in courts (unlike Fundamental Rights).
- - Serve as **guidelines** for the state.
- - The state must annually report to Parliament on steps taken.

#### List of Principles

| Article | Principle |

| ----- | ----- |

| **Art. 29** | Responsibility of state organs to observe Principles of Policy. |

| **Art. 30** | Limit of responsibility — not enforceable in court. |

| **Art. 31** | **Islamic way of life** — promote teachings of Islam, Arabic, Quran. |

| **Art. 32** | **Promotion of local government** institutions. |

| **Art. 33** | **Discouragement of parochial, racial, tribal, sectarian prejudices.** |

| **Art. 34** | **Full participation of women** in national life. |

| **Art. 35** | **Protection of family, marriage, mother, and child.** |

| **Art. 36** | **Protection of minorities** — legitimate rights and interests. |

| **Art. 37** | **Promotion of social justice** — eradicate illiteracy, provide free education up to secondary level, healthcare. |

| **Art. 38** | **Promotion of social and economic well-being** — basic necessities of life. |

| **Art. 39** | **Participation of people in armed forces.** |

| **Art. 40** | **Strengthen bonds with Muslim world** and promote international peace. |

#### Difference from Fundamental Rights

| Fundamental Rights | Principles of Policy |

| ----- | ----- |

| Articles 8-28 | Articles 29-40 |

| **Justiciable** (court can enforce) | **Non-justiciable** |

| Binding | Directive |

| Citizens' rights | State duties |

| Violation = void law | Violation = political accountability |



**Exam Tip:** Principles of Policy are **moral guidelines**; Fundamental Rights are **enforceable laws**.

## 5.3 Responsibilities of Citizens (Article 5)

### Responsibilities of Citizens — Article 5

#### Article 5 of the Constitution

- - **Article 5(1):** *"Loyalty to the State is the basic duty of every citizen."*
- - **Article 5(2):** *"Obedience to the Constitution and law is the inviolable obligation of every citizen wherever he may be and of every other person for the time being within Pakistan."*

#### Civic Responsibilities of Pakistani Citizens

1. **Loyalty to the State** — defending Pakistan's sovereignty and integrity.
2. **Obedience to the Constitution and law** — basic duty.
3. **Pay taxes honestly** — funds public services.
4. **Vote in elections** — participate in democracy.
5. **Respect public property** — schools, hospitals, parks, roads.
6. **Protect environment** — natural resources, water, forests.
7. **Respect rights of others** — religious, ethnic, gender minorities.
8. **Report crimes and anti-state activities.**
9. **Promote national unity** — discourage sectarianism, regionalism.
10. **Help in emergencies** — natural disasters, accidents.
11. **Respect national symbols** — flag, anthem, founder.
12. **Get educated** — fight illiteracy, promote knowledge.

#### Moral Responsibilities

- - Honesty and truthfulness.
- - Justice and fair dealing.
- - Tolerance and brotherhood.
- - Hard work and self-reliance.

#### Importance

- - Without responsible citizens, no state can function.
- - Rights and duties are **two sides of the same coin**.
- - A balance between **liberties and obligations** sustains democracy.

**Exam Tip:** Article 5 = **loyalty + obedience** — most asked direct question.

## Unit 6: Constitutional Amendments

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### 6.1 Procedure for Amending the Constitution

#### Procedure for Amending the Constitution (Article 238-239)

##### General Rule

Constitution can be amended only by an **Act of Parliament** passed by a **two-thirds majority** in both houses.

##### Step-by-Step Process

| Step | Action |

| --- | ----- |

| 1 | Constitution Amendment Bill introduced in either National Assembly or Senate. |

| 2 | Passed by **two-thirds majority** of total membership of the House. |

| 3 | Transmitted to the other House. |

| 4 | Passed by **two-thirds majority** in the second House. |

| 5 | If amendment affects provincial boundaries — **majority approval of concerned Provincial Assembly** required. |

| 6 | Sent to **President** — who must give assent within **10 days** (originally 7). |

| 7 | If President does not sign, deemed assented. |

##### Special Provisions

- - **Article 239(4)**: Amendments altering boundaries of a province require approval of the relevant Provincial Assembly by 2/3 majority.
- - **Article 239(5)-(6)**: No amendment can be challenged in any court.

##### Limitations

- - Salient features (federation, parliamentary system, Islamic provisions) are considered part of the **basic structure** — debated whether they can be amended.
- - Article 6 makes abrogation of the Constitution **high treason**.

##### Comparison

- - Pakistan's amendment procedure is **rigid** like the USA but more flexible than India.
- - Simple legislation needs only **simple majority**; constitutional amendments need **2/3**.

**Exam Tip:** Two-thirds in **both houses** + (sometimes) provincial assembly + president.

## 6.2 Early Amendments (1st, 2nd, 5th, 8th)

### Early Constitutional Amendments (1st-8th)

#### 1st Amendment (1974)

- - Adjusted boundaries after Bangladesh's separation.
- - Removed references to East Pakistan.

#### 2nd Amendment (1974)

- - Declared Ahmadis (Qadianis) as non-Muslims.
- - Defined "Muslim" in the Constitution.
- - Passed under **Z. A. Bhutto** unanimously.

#### 3rd Amendment (1975)

- - Extended period of preventive detention.

#### 4th Amendment (1975)

- - Increased reserved seats for minorities.
- - Limited High Court powers regarding preventive detention.

#### 5th Amendment (1976)

- - Curtailed powers of judiciary.
- - Reduced High Court's writ jurisdiction.
- - Tenure of Chief Justices fixed.
- - Highly controversial — seen as Bhutto's attack on judiciary.

#### 6th Amendment (1976)

- - Extended retirement age of Supreme Court judges to 65 and High Court judges to 62.

#### 7th Amendment (1977)

- - Provided for referendum to determine confidence in PM.

#### 8th Amendment (1985) — Most Important Early Amendment

- - Passed under **General Zia-ul-Haq's** martial law regime.
- - **Key changes:**
- - Inserted **Article 2-A** — made **Objectives Resolution** a substantive part of Constitution.
- - **Article 58(2)(b)** — gave President power to **dissolve National Assembly** at his discretion.

- - Indemnified all martial law actions of Zia (1977-1985).
- - Increased President's powers significantly.
- - **Impact:** Used to dismiss **four elected governments** between 1988-1996 (Junejo, Benazir twice, Nawaz).

**Exam Tip:** 2nd Amendment = Ahmadis non-Muslim. 8th Amendment = Article 58(2) (b) + Objectives Resolution as 2-A.

## 6.3 13th, 17th and 18th Amendments

### Major Mid-Period Amendments — 13th, 17th, 18th

#### 13th Amendment (1997)

- - Passed under **Nawaz Sharif's** government.
- - **Removed Article 58(2)(b)** — President could no longer dissolve National Assembly.
- - Restored full powers to **Prime Minister**.
- - Provincial Governors required PM's advice for assembly dissolution.

#### 14th Amendment (1997)

- - **Anti-defection law** — MPs who vote against party line lose their seat.
- - Strengthened party discipline.

#### 15th Amendment (1998)

- - Bill to make **Shariah** the supreme law — passed by NA, lapsed in Senate.

#### 16th Amendment (1999)

- - Extended quota system for civil service jobs.

#### 17th Amendment (2003)

- - Passed under **General Pervez Musharraf**.
- - **Restored Article 58(2)(b)** — President could dissolve assemblies again.
- - Validated Musharraf's **Legal Framework Order (LFO)** of 2002.
- - Gave constitutional cover to military takeover.
- - Reduced parliamentary powers.

#### 18th Amendment (2010)

- - Passed under **PPP government (Asif Ali Zardari)**.
- - **Most landmark amendment** in Pakistan's history.
- - **Reversed** all distortions of 8th and 17th amendments.
- - **Abolished Concurrent List** — devolution to provinces.
- - **Renamed NWFP to Khyber Pakhtunkhwa**.
- - Strengthened Article 6 (high treason).
- - Added **Article 25-A** (Right to Education).
- - Added **Article 19-A** (Right to Information).
- - Independent Election Commission.
- - Restored full **parliamentary democracy**.

## 19th Amendment (2010)

- - Refined the procedure for **judicial appointments** through Judicial Commission.

## 20th Amendment (2012)

- - Established framework for **caretaker governments** before elections.
- - Empowered ECP to ensure free and fair polls.

**Exam Tip:** 13th removed 58(2)(b); 17th restored it; 18th removed it again permanently.



## 6.4 Recent Amendments (19th-26th)

### Recent Constitutional Amendments (19th-26th)

#### 19th Amendment (2010)

- - Refined judicial appointments via **Judicial Commission of Pakistan**.
- - Strengthened parliamentary committee's role.

#### 20th Amendment (2012)

- - Provided for **neutral caretaker government** before elections.
- - Strengthened **Election Commission of Pakistan**.

#### 21st Amendment (January 2015)

- - Established **military courts** to try terrorists.
- - Passed after **APS Peshawar attack (Dec 2014)**.
- - Initially valid for **2 years**; extended by 23rd Amendment.
- - Lapsed in **2019**.

#### 22nd Amendment (2016)

- - Reformed appointment of Election Commissioners.
- - Allowed retired judges/bureaucrats to be appointed CEC and members.

#### 23rd Amendment (2017)

- - **Extended military courts** for two more years.
- - Lapsed in March 2019.

#### 24th Amendment (2017)

- - Allowed **delimitation of constituencies** based on provisional census results (2017 census).

#### 25th Amendment (May 2018)

- - **Merged FATA (Federally Administered Tribal Areas)** with Khyber Pakhtunkhwa.
- - Historic step — gave tribal people **full constitutional rights**.
- - Abolished **Frontier Crimes Regulation (FCR)**.

#### 26th Amendment (October 2024)

- - Reorganised **judicial appointments**.
- - Created **Constitutional Bench** of the Supreme Court.
- - Modified retirement and tenure rules for Chief Justice.
- - Most recent major amendment.

**Exam Tip:** 21st = military courts; 25th = FATA-KPK merger; 26th = constitutional bench (2024).

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